

HOUSE BILL 1725

By Maberry

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to dependent children of service members.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3101, is amended by deleting subsection (c) and substituting:

(c) The student or the student's parent shall provide the documentation described in subdivision (b)(2) to the school district no later than sixty (60) days from the last day of the first school year in which the student enrolls in the LEA or within one (1) year from the date on which the service member reported for duty in this state, whichever is later.

(d) If a student enrolls in a public school pursuant to subsection (b) and the student has an active Section 504 plan developed under Section 504 of the Rehabilitation Act (29 U.S.C. § 794), an individualized family service plan under 20 U.S.C. § 1436, or an individualized education plan under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.), then the LEA shall take the necessary steps to ensure that necessary services are in place when the student enrolls.

(e) Notwithstanding another law to the contrary, if a student is enrolled in a high school under the jurisdiction of an LEA in grade eleven (11) or twelve (12) and is the dependent child of a service member who relocates on military orders resulting in the student no longer residing in the school district due to the relocation, then the LEA shall allow the student to remain enrolled in the same high school until the student graduates or withdraws.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.